



U.S. DEPARTMENT of STATE

PRIVILEGED INSTRUCTIONS

UNITED STATES OF AMERICA



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Privileged Instructions

Fundamental Principles

- Peace and tranquility within the South China Sea (SCS) region through adherence to international norms and respect for the United Nations Convention on the Law of the Sea (UNCLOS).
- Peaceful resolution of territorial and sovereignty claims through adherence to established agreements and conventions.
- Freedom of Navigation and the Right of Innocent Passage are inherent rights of all nations in all international bodies of water, to include the SCS.

Desired End State(s):

- An immediate reduction in tensions throughout the SCS region.
- Resolution of current claims through peaceful negotiation or international arbitration.
- Continued security of all sea lanes through implementation of treaties and arms conventions between all nations.
- Shared exploitation of the resources of the SCS through multilateral agreements.

Principle Negotiation Positions

- The U.S. position is that Beijing's claims to offshore resources across most of the SCS are unlawful, as is its campaign to control them.
- The U.S. strongly objects to the exercise of coercion by any state against any another state. Therefore, it calls for the immediate proposal of, agreement on, and implementation of confidence building measures to ensure a reduction in tensions over the long term.
- The U.S. supports the ASEAN as the logical multilateral platform through which conflicts between SCS states should be discussed and resolved. Attempt to gain support of Japan to back ASEAN initiatives, foster multilateral solutions, and buttress the sovereignty claims of Indonesia, Malaysia, the Philippines and Vietnam.
- While the U.S. has not yet ratified UNCLOS, we adhere to its principles and support adherence by all signatories. We applaud the effort of the Philippine government to resolve its SCS claims under UNCLOS provisions and encourages all other signatories to do the same.
- The security of, and freedom of transit through, international sea lanes is a fundamental principle. No nation shall be allowed to inhibit innocent passage or the conduct of commerce through internationally recognized bodies of water.
- The U.S. confirms its support for the Philippines under the 1951 Mutual Defense Treaty, and reserves the right to provide political, economic, and security support to any nation under similar agreements.

Delegation Instructions

Ensure periodic reports, requests for further guidance, or clarifications to the instructions herein are submitted via message to the office of the Secretary of State.

GENERAL: First, we offer our services to mediate and facilitate a settlement of SCS issues. To calm the present situation and allow reasoned discussion to proceed, we support any mutually agreeable measures that will reduce tensions. Second, we support the mediation of all claims through established UNCLOS mechanisms or within the multilateral forums established by ASEAN. Third, we support the mutual exploitation of SCS resources under reasoned, equitable concepts, and we view the Philippine Zone of Peace, Friendship, Freedom and Cooperation (ZoPFF/C) concept as a reasonable and appropriate multilateral and cooperative vehicle.

We reject any claim of internal waters between dispersed islands subject to relevant claims in the SCS. Also, any claim of maritime zones derived from treating island groups as collective. Any claims based on features, that are not islands within the meanings of UNCLOS, do not generate maritime zones of their own under international law. We support the Tribunal's unanimous ruling, which is final and binding, that the claim to historic rights is incompatible with UNCLOS to the extent that it exceeds the limits of possible maritime zones as specifically provided for by UNCLOS.

China: We seek to build a positive, cooperative, and comprehensive relationship by expanding areas of cooperation while still addressing areas of disagreement. We welcome a strong, peaceful, responsible, and prosperous China playing a greater role in world affairs and seek to advance practical cooperation with Beijing in order to build a partnership based on mutual benefit and respect. Washington continues to emphasize the need to enhance bilateral trust through increased high-level exchanges, formal dialogues, and expanded personal ties. Our approach to China is an integral part of our reinvigorated engagement within the entire Indo-Pacific region.

China has long-term goals of becoming the sole regional superpower and perhaps a global superpower, and that to accomplish this it seeks to expand its control in the western Pacific Ocean. With their development of a "blue-water" navy of sufficient capability, China would change from being in competition with our nation in the SCS to one controlling the SCS. Our overarching strategy is to nudge the Chinese toward eventually becoming a responsible nation that accepts and lives by international norms.

Beijing's aggressive exploitation of several of the atolls and reefs through land reclamation and installation of military infrastructure, can only be interpreted as a move to consolidate the SCS as an integral part of China. Such overt aggression contradicts its self-professed "Good Neighbor" policy. These actions are ultimately unproductive, and the continuance of such behavior only alienates China from its neighbors and erodes positive and productive relations. We must encourage Beijing to return to the more patient and prudent ways of its past. We will work to achieve this through all forms of formal and informal dialogue, and with increased engagement with Beijing and all Indo-Pacific nations. The aim is to demonstrate to China that continued American presence in the region is at the behest of the vast majority of SEA and Indo-Pacific nations.

Regarding its claims to the SCS, we urge Beijing to clarify its claims in terms consistent with customary international law derived solely from legitimate claims and land features. Specifically, we urge it to abide by UNCLOS provisions. It can begin to demonstrate its willingness to do so by recognizing the Permanent Court of Arbitration's award in the Philippine case and agree to engage Manila on the ramifications of that award.

The Philippines and Vietnam: Regarding Vietnam, the Philippines, and other SCS claimants, we support their right to vigorously prosecute their claims through bilateral talks, multilateral forums, or under internationally established procedures, such as those in UNCLOS. While we strongly express

that military action by any party is ill-advised, we continue to pledge our full support to the Philippines under our mutual defense treaty. Assure both nations of our continued commitment to the economic health and security of the region.

Brunei, Indonesia, and Malaysia: Emphasize the importance of ASEAN leadership and the relationships within ASEAN. Ask what can be done to help mediate their current relations with China. Ask that they concentrate their efforts in these talks on the establishment of multilateral confidence building measures that might accomplish the same goals. Urge the Indonesians to continue to use their relationships to help move all parties toward a peaceful resolution. Promote Malaysia's position as ASEAN chair to seek multilateral regional solutions to regional issues. Ask all to continue seeking to persuade China to the PCA decision on the Philippine case.

India and Japan: With Japan and India, maintain their support for a peaceful resolution and their commitment to remaining involved in the region through their various roles. Urge that they be more directive with China than we can be on their positions regarding the SCS. They need not be as circumspect as we are, especially as they are UNCLOS member states. Seek to align our positions so that in any of our nations' discussions with China, Beijing will see that we essentially speak with one voice. Our aim is to move the Chinese government to accept international norms across the board and not just those that suit its current national aims.